CITY OF OPA-LOCKA
"The Great City"

CLERK'S ACTION SUMMARY MINUTES
SPECIAL COMMISSION MEETING
March 01, 2010
6:00 P.M.
City Commission Chambers
777 Sharazad Boulevard
Opa-locka, FL 33054

1. ROLL CALL:

The City Commission of the City of Opa-locka, Miami-Dade County, Florida, met in a special session on Monday, March 01, 2010 at 6:03 p.m. in the City Commission Chambers, 777 Sharazad Boulevard, Opa-locka, Florida. The following members of the City Commission were present: Commissioner Dorothy Johnson, Vice Mayor Myra L. Taylor, Commissioner Timothy Holmes and Mayor Joseph L. Kelley. Also in attendance were: City Manager Clarance Patterson, Interim City Attorney Joseph S. Geller and City Clerk Deborah S. Irby. Commissioner Rose Tydus arrived at 6:15 p.m.

2. INVOCATION:

The Invocation was delivered by Mayor Joseph L. Kelley.

3. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

4. PRESENTATIONS FROM VENDORS FOR SHERBONDY PARK PROJECT:

The City Commission listened to presentations from the following three (3) vendors for the construction of Sherbondy Park and the Community Center:

A. Grace & Naeem Uddin, Inc.
B. Lemartec
C. CBHC, LLC

5. RESOLUTION:

A. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, DIRECTING AND AUTHORIZING THE CITY MANAGER TO CONTRACT WITH ONE OF THREE (3) VENDORS FOR CONSTRUCTION OF SHERBONDY PARK AND COMMUNITY CENTER;

PROVIDING FOR RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above resolution was read by title by Attorney Geller.

Commissioner Johnson preferred having review what's presented to the Commission and not having anyone's scores.

Mayor Kelley added that he previously asked that the City Manager include any documentation from the review committee in the packet to prevent from having to sit in the meeting all night asking questions.

Vice Mayor Taylor asked, who put the review committee together?

Manager Patterson advised that the Finance Director Ezekiel Orji put the committee together because the Purchasing Department falls under the Finance Department. The committee met and came up with the three (3) vendors and his recommendation is as reflected in the packet provided to them.

Vice Mayor Taylor asked, is one of Finance staff members a voting member of the committee?

Manager Patterson replied, yes.

Vice Mayor Taylor asked, is this project time sensitive?

Manager Patterson replied, yes. He said this was the second or third time this project had gone out for bid.

Vice Mayor Taylor asked, how long after the permitting stage would it take for the project to get started?

Manager Patterson advised that the work order can be issued upon approval of a contractor.

After hearing the firms speak about the legal issues, Vice Mayor Taylor asked Attorney Geller whether he had any comments on that matter.

Attorney Geller stated that the RFP required disclosures of any actions or lawsuits involving the city; however, it doesn't require the contractors to disclose others. Apparently staff did some independent research to find if there were other issues and the contractors would disclose it. The fact is that it may not disqualify them; but the Commission is certainly permitted to take that information into account when making a decision.

Vice Mayor Taylor asked if the individuals involved in the committee were from the Public Works Department, Parks & Recreation and the Building Official.

Manager Patterson replied, yes.

Vice Mayor Taylor asked, what are the industry standards for this project in terms of how much it would cost per square foot to build the building?

Daniel Abia, Building Official for the City of Opa-locka came forward and stated that he was not a part of the committee because he is the director of the Public Works Department as well; therefore, when the vendor is selected he would have to enforce and make sure they deal according to the contract. He said he was excluded from the committee; however, another individual from the Building Department participated in the committee.

He continued by saying that he was hoping this project would be approximately $150.00 per square foot building; but $135.00 is what the Building Department used in the evaluation.

Commissioner Johnson stated to the City Attorney that although the Commission has a recommendation from the committee it is ultimately up to them to decide.

Attorney Geller stated that staff evaluates items from a technical perspective; however, the reason this is an RFP as oppose to being a bid was precisely because it was made clear that this Commission was extremely concerned to get this done as quickly as possible. Therefore, the Commission is expected to look at things in addition to price in terms of reliability, financial stability, lack of litigation with owners and the ability to begin and finish quickly because their responsibility is different to staff. He advised that this item was completely within the Commission's discretion based on what they've seen, heard, the information received to pick whomever they want to get this job done for the citizens.

Commissioner Holmes stated that the committee goes over the RFP's and puts the package together; however, it doesn't matter what recommendation they make because the Commission sits as the policy makers selecting the best vendor after hearing the presentations.

Mayor Kelley stated that in all RFP's that went out in this city, staff usually makes a recommendation after reviewing the proposals and technical issues. However, it is just a recommendation because he didn't want to have staff come up from any given department and have the Commission asking a lot of questions and that is why the information is a part of the package. The Commission didn't have to take the information into consideration because as a body they will make the decision. The information is provided for informational purposes because the committee is made up of various departments in the City of Opa-locka that would be familiar with the project.

He further asked if the recommendation made per the memorandum the City Manager's recommendation as the City Manager.

Manager Patterson replied, that is correct.

Mayor Kelley stated that this item is time sensitive and the city has been working on the dollars to get to this point. He said he didn't want to see anymore delays while the city has the funding and that's why he didn't want to wait until the regular commission meeting to get this going.

Vice Mayor Taylor thanked staff and the City Manager for doing due diligence on this issue.

She continued by saying that she did do due diligence on all of the vendors and she is particularly concerned about financial stability to make sure that nothing stops and the project moves forward.

She further asked, can the vendor chosen be allowed to complete the project; both Phase I and Phase II?

Manager Patterson replied, certainly they can.

Attorney Geller advised Vice Mayor Taylor that it should be made a part of the motion so that it's clear that the Commission is selecting for both phases at once and that would eliminate any question.

Commissioner Johnson asked, was the RFP posted as such?

Manager Patterson stated that the RFP had Phase I and Phase II.

Vice Mayor Taylor added that when the vendors gave the cost, it was for both phases.

Manager Patterson clarified that the cost the Commission is looking at on the documentation provided is for Phase I; however, the vendors quoted Phase II as well.

It was moved by Vice Mayor Taylor, seconded by Commissioner Holmes to recommend CBHC, LLC as the construction company to complete the job of Sherbondy Park.

Mayor Kelley stated that he likes the local workforce participation of CBHC, LLC; however, he doesn't like the joint venture component because it is not strong enough in terms of what the project entails especially when it talks about this amount of money.

Commissioner Tydus agreed with Mayor Kelley in part as far as the joint venture project is concerned; but her convictions are stronger in the areas of experience and cost. With that in mind, she said she was looking more at Lemartec in which she was also impressed

with their community involvement and education project that would involve the citizens more specifically the youth.

She continued by saying that she doesn't down play the committee in anyway because she respects their technical expertise in those areas she is not that strong in so she does give some consideration to the tabulation presented to the Commission by the committee. However, her final decision is not based on administration but she does take into consideration the committee's technical assistance. With that in mind, she does concur with the committee in far as experience is concerned and the cost for the project as well as community participation.

Commissioner Johnson stated that she is concerned about the cost and if she is going to support this vendor then the partnership needs to be enhanced. If this company is chosen, she stated to the City Manager and City Attorney that she would like to see the enhancement of the team and to make sure that it is diversified.

She continued by saying that during the presentation several businesses were mentioned but it was limited and there are a lot of companies in Opa-locka that she would like to see considered also.

Mayor Kelley agreed that the city should have participation from local vendors but he still has the same concerns and it goes without saying that the cost exceeds the funding available for this project.

There being no further discussion, the motion passed by a 3-2 vote.

Commissioner Tydus	No
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Mayor Kelley	No

6. ADJOURNMENT:

There being no further business to come before the City Commission, it was moved by Commissioner Holmes, seconded by Commissioner Johnson to adjourn the meeting at 7:30 p.m.

ATTEST:

CITY CLERK

MAYOR